



CHAPTER vii.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Provisional Order (Marriages) Act 1905.

A.D. 1917

[24th May 1917.]

WHEREAS the Right Honourable Sir George Cave one of His Majesty's Principal Secretaries of State has made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Provisional Order (Marriages) Act 1905:

5 Edw. 7.
c. 23.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule hereunto annexed is hereby confirmed.

Order in
schedule
confirmed.

2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1917.

Short title.

A.D. 1917.

S C H E D U L E.

WHEREAS power is given to a Secretary of State by the Provisional Order (Marriages) Act 1905 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt:

And whereas in the year one thousand eight hundred and sixty-four the church of Saint John in the parish of Great Wollaston partly in the county of Salop and partly in the county of Montgomery in the diocese of Hereford till then a chapel of ease in the parish of Alberbury was made the parish church of the new parish of Great Wollaston and continued so to be until the twenty-second day of June one thousand eight hundred and seventy-one when by a deed of substitution in accordance with the provisions of 8 & 9 Vict. c. 70 the church of All Saints in the parish of Great Wollaston which was built in the year one thousand eight hundred and seventy and was duly consecrated for the performance of divine service was substituted therefor:

And whereas divers marriages have nevertheless been solemnized in the said church of Saint John Great Wollaston between the twenty-second day of June one thousand eight hundred and seventy-one and the second day of August one thousand nine hundred and sixteen on which date the church was licensed for the solemnization of marriages:

And whereas on the twenty-first day of April one thousand nine hundred and fifteen a licence having been duly granted for the purpose a marriage was solemnized in the church of Saint Mary in the parish of St. Alphege Greenwich in the county of Kent and diocese of Southwark being a chapel of ease to the parish church of St. Alphege and not being licensed for the solemnization of marriages:

And whereas on the nineteenth day of November one thousand nine hundred and seven a marriage was solemnized in Bethesda Chapel Tenby Road Saint Issells in the registration district of Narberth a registered building between Joseph Charles Joyce and Beatrice May McLauchlan without the presence of any registrar and not in the presence of a duly authorised person and the particulars relating to the said marriage were not registered in the manner provided by the Marriage Act 1898:

And whereas it is expedient in the circumstances aforesaid to remove all doubts touching the validity of the marriages solemnized in the said churches of St. John in the parish of Great Wollaston and St. Mary in the parish of St. Alphege Greenwich and in the said Bethesda Chapel in the registration district of Narberth:

[7 & 8 GEO. 5.] *Provisional Order (Marriages)* [Ch. vii.]
Confirmation Act, 1917.

Now therefore I the Right Honourable Sir George Cave one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Provisional Order (Marriages) Act 1905 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect:—

A.D. 1917.

1. All banns of matrimony and marriages published and solemnized and all marriages solemnized under licence between the twenty-second day of June one thousand eight hundred and seventy-one and the second day of August one thousand nine hundred and sixteen in the church of St. John in the parish of Great Wollaston partly in the county of Salop and partly in the county of Montgomery in the diocese of Hereford and the marriage solemnized under licence on the twenty-first day of April one thousand nine hundred and fifteen in the church of St. Mary in the parish of St. Alphege Greenwich in the county of Kent and diocese of Southwark shall be and shall be deemed to have been as valid as if the banns of matrimony had been published and the marriages had been solemnized in a church in which banns might be published and marriages solemnized lawfully.

2. The marriage solemnized on the nineteenth day of November one thousand nine hundred and seven in Bethesda Chapel Tenby Road Saint Issells in the registration district of Narberth between Joseph Charles Joyce and Beatrice May McLauchlan shall be and shall be deemed to have been as valid as if the said marriage had been solemnized with the presence of a registrar and in the presence of a duly authorised person and as if the particulars relating to the said marriage had been duly registered in the manner provided by the Marriage Act 1898.

3. A minister who has solemnized any marriage referred to in the first or second paragraphs of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized the marriages.

4. The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

Given under my hand this first day of February one thousand nine hundred and seventeen.

GEO. CAVE
One of His Majesty's Principal
Secretaries of State.

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